

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

Index No.:

Purchased: _____

-----X
IVELISE SUAREZ AND MARIA VILLALOBO,

Plaintiffs designate

BRONX County as the place of trial

Plaintiffs,

-against-

The basis of the venue is where the
tort arose and where plaintiff resides

**THE CITY OF NEW YORK, SHAWN MOYNIHAN
P.O. OF PSA 7, SHIELD #3202, TAX ID #953147,
MARIELA ORTEGA P.O. OF PSA 7, SHIELD #2975,
TAX ID #954198, OTHER NEW YORK CITY
POLICE OFFICERS ON ARREST #B17663805, N/H/A
JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON DECEMBER 19, 2017
AND NO OTHER,**

SUMMONS

Plaintiffs reside at

IVELISE SUAREZ
747 East 168th Street
Bronx, New York 10456

Defendants.

MARIA VILLALOBO
747 East 168th Street
Bronx, New York 10456

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
January 11, 2019


SIM & DEPAOLA, LLP
BY: PETER SIM, ESQ.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**SHAWN MOYNIHAN P.O. OF PSA 7
SHIELD #3202, TAX ID #953147**

737 Melrose Avenue
Bronx, New York 10455

**MARIELA ORTEGA P.O. OF PSA 7
SHIELD #2975, TAX ID #954198**

737 Melrose Avenue
Bronx, New York 10455

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

Index No.:

Purchased: _____

-----X
IVELISE SUAREZ AND MARIA VILLALOBO,**Plaintiffs,****-against-****VERIFIED COMPLAINT**

**THE CITY OF NEW YORK, SHAWN MOYNIHAN
P.O. OF PSA 7, SHIELD #3202, TAX ID #953147,
MARIELA ORTEGA P.O. OF PSA 7, SHIELD #2975,
TAX ID #954198, OTHER NEW YORK CITY
POLICE OFFICERS ON ARREST #B17663805, N/H/A
JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON DECEMBER 19, 2017
AND NO OTHER,**

Defendants.

-----X

IVELISE SUAREZ, by her attorneys, **SIM & DEPAOLA, LLP**, respectfully
alleges as follows:

1. At all times mentioned, Plaintiff **IVELISE SUAREZ** was a resident of Bronx County, City and State of New York
2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about March 9, 2018, the Plaintiff timely served a Notice of Claim, within ninety (90) days from the date the claim arose, in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim notified the Defendant **CITY OF NEW**

YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the Notice of Claim.

The municipal Defendant has failed to make any adjustment of payment thereof within the applicable time period. Thus, the Plaintiff is commencing the instant action within one year and ninety (90) days after the happening of the event upon which the claims arose (other than the Federal claims.)

5. The Plaintiff has complied with the municipal Defendant's request for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable time period and thus the pre-condition for the 50-H examination has been waived.

6. Upon information and belief, at all times, mentioned, Defendants **SHAWN MOYNIHAN P.O. OF PSA 7, SHIELD #3202, TAX ID #953147, MARIELA ORTEGA P.O. OF PSA 7, SHIELD #2975, TAX ID #954198, OTHER NEW YORK CITY POLICE OFFICERS ON ARREST #B17663805, N/H/A JOHN/JANE DOE I-IV**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

FIRST CAUSE OF ACTION

7. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs 1 through 6 with full force and effect as though set forth at length herein.
8. On or about December 19, 2017, at approximately 9:45-10:10 A.M., in the vicinity of the Northeast corner of 165th Street and Tinton Avenue, County of Bronx, City of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **IVELISE SUAREZ**, in an excessive manner about her person, causing her physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.
9. That by reason of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

AS AND FOR A SECOND CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs 1 through 9 with full force and effect as though set forth at length herein.
11. On or about December 19, 2017, at approximately 9:45-10:10 A.M., in the vicinity of the Northeast corner of 165th Street and Tinton Avenue, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff **IVELISE SUAREZ** in imminent fear of physical contact by

approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

12. That by reason of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

AS AND FOR A THIRD CAUSE OF ACTION

**(Pursuant to 42 U.S.C. § 1983 and 42 U.S.C. §1988 Against
the Individually named Police Officers not the City of New York
or officers sued in their official capacity)**

13. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs 1 through 12 with full force and effect as though set forth at length herein.
14. Defendants, in their individual capacity, **SHAWN MOYNIHAN P.O. OF PSA 7, SHIELD #3202, TAX ID #953147, MARIELA ORTEGA P.O. OF PSA 7, SHIELD #2975, TAX ID #954198, OTHER NEW YORK CITY POLICE OFFICERS ON ARREST #B17663805, N/H/A JOHN/JANE DOE I-IV**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
15. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

16. Plaintiff **IVELISE SUAREZ** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
17. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
18. On or about December 19, 2017, the Defendants, armed police, while effectuating the seizure of the Plaintiff **IVELISE SUAREZ**, did search, seize, assault and commit a battery and grab the person of the Plaintiff. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. In this instance Plaintiff was inside a vehicle that was stopped and searched. Plaintiff had multiple assault and batteries committed to her person including but not limited to being grabbed/choked to her neck by **MARIELA ORTEGA P.O. OF PSA 7, SHIELD #2975, TAX ID #954198**, thrown by Police Officer Ortega against a vehicle, and punched all over her body by several officers, one of them Police Officer Moynihan whom yelled "tase that fu***** bi****" and then tasered by **SHAWN MOYNIHAN P.O. OF PSA 7, SHIELD #3202, TAX ID #953147** around her stomach area. Plaintiff sought treatment at Lincoln Hospital for injuries sustained during this incident. **SHAWN MOYNIHAN P.O. OF PSA 7, SHIELD #3202, TAX ID #953147** was the arresting officer in this case. The handcuffs were placed on Plaintiff's wrists so tight that Plaintiff's wrists turned red and bled.

19. The above action of the Defendant resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:

1. Freedom from assault to her person;
2. Freedom from battery to her person;
3. Freedom from the use of excessive force during the arrest process;
4. Freedom from being illegally strip-searched.

20. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

21. The direct and proximate result of the individual Defendants acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

22. That by reason of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

AS AND FOR A FOURTH CAUSE OF ACTION

23. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs 1 through 22 with full force and effect as though set forth at length herein.

24. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court

authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

25. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

26. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Excessive force cannot be used against an individual who does not physically resist arrest.
2. An individual who sustains physical injury at the hands of the police during arrest process should receive prompt medical attention.

27. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under

the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

28. That by reason of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

AS AND FOR AN FIFTH CAUSE OF ACTION

29. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs 1 through 28 with full force and effect as though set forth at length herein.
30. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

AS AND FOR AN SIXTH CAUSE OF ACTION

31. At all times mentioned, Plaintiff **MARIA VILLALOBO** was a resident of Bronx County, City and State of New York

32. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
33. On or about March 9, 2018, the Plaintiff timely served a Notice of Claim, within ninety (90) days from the date the claim arose, in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim notified the Defendant **CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
34. At least thirty (30) days have elapsed since the service of the Notice of Claim. The municipal Defendant has failed to make any adjustment of payment thereof within the applicable time period. Thus, the Plaintiff is commencing the instant action within one year and ninety (90) days after the happening of the event upon which the claims arose (other than the Federal claims.)
35. The Plaintiff has complied with the municipal Defendant's request for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable time period and thus the pre-condition for the 50-H examination has been waived.
36. Upon information and belief, at all times, mentioned, Defendants **SHAWN MOYNIHAN P.O. OF PSA 7, SHIELD #3202, TAX ID #953147,**
MARIELA ORTEGA P.O. OF PSA 7, SHIELD #2975, TAX ID #954198,

OTHER NEW YORK CITY POLICE OFFICERS ON ARREST

#B17663805, N/H/A JOHN/JANE DOE I-IV, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

AS AND FOR SEVENTH CAUSE OF ACTION

37. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs 1 through 36 with full force and effect as though set forth at length herein.
38. On or about December 19, 2017, at approximately 9:45-10:10 A.M., in the vicinity of the Northeast corner of 165th Street and Tinton Avenue, County of Bronx, City of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **MARIA VILLALOBO**, in an excessive manner about her person, causing her physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.
39. That by reason of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

AS AND FOR A EIGHTH CAUSE OF ACTION

40. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs 1 through 39 with full force and effect as though set forth at length herein.
41. On or about December 19, 2017, at approximately 9:45-10:10 A.M., in the vicinity of the Northeast corner of 165th Street and Tinton Avenue, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff **MARIA VILLALOBO** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.
42. That by reason of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

AS AND FOR A NINTH CAUSE OF ACTION

43. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs 1 through 42 with full force and effect as though set forth at length herein.
44. On or about December 19, 2017, at approximately 9:45-10:10 A.M., in the vicinity of the Northeast corner of 165th Street and Tinton Avenue, County of Bronx, State of New York the Defendants, jointly and severally without any

warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained her and her liberty and then took her into custody to a police station in the County of Bronx where she was not formally arrested. The Plaintiff was thereafter held in custody over the course of fifteen to thirty (15-30) minutes until she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

45. That by reason of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

AS AND FOR A TENTH CAUSE OF ACTION

46. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs 1 through 45 with full force and effect as though set forth at length herein.
47. On or about December 19, 2017, at approximately 9:45-10:10 A.M., in the vicinity of the Northeast corner of 165th Street and Tinton Avenue, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained her and her liberty and then took her into custody and causing her to be incarcerated as a detainee in the City of New York's Correctional Facility and/or police jail. The Plaintiff was thereafter held in custody over the course of fifteen to thirty

(15-30) minutes before she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

48. That by reason of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

AS AND FOR A ELEVENTH CAUSE OF ACTION

(Pursuant to 42 U.S.C. § 1983 and 42 U.S.C. §1988 Against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

49. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs 1 through 48 with full force and effect as though set forth at length herein.

50. Defendants, in their individual capacity, **SHAWN MOYNIHAN P.O. OF PSA 7, SHIELD #3202, TAX ID #953147, MARIELA ORTEGA P.O. OF PSA 7, SHIELD #2975, TAX ID #954198, OTHER NEW YORK CITY POLICE OFFICERS ON ARREST #B17663805, N/H/A JOHN/JANE DOE I-IV**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

51. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

52. Plaintiff **MARIA VILLALOBO** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

53. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.

54. On or about December 19, 2017, the Defendants, armed police, while effectuating the seizure of the Plaintiff **MARIA VILLALOBO**, did search, seize, assault and commit a battery and grab the person of the Plaintiff. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had multiple batteries committed against him, without the Defendants possessing probable cause to do so. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner, **MARIELA ORTEGA P.O. OF PSA 7, SHIELD #2975, TAX ID #954198** threw her to the ground causing Plaintiff Villalobos to fracture her left wrist and suffer substantial pain. The Plaintiff was falsely arrested, unlawfully imprisoned without the Defendants possessing probable cause to do so. In this instance Plaintiff was inside a vehicle that was illegally stopped and searched. NYPD officers illegally stopped the vehicle that Plaintiff was in. The Plaintiff was illegally touched, pushed and thrown to the ground even though Plaintiff had not committed any crime or violation of the law to justify such police action. Plaintiff had multiple assault and batteries committed to her person including but not limited to being grabbed, pushed in her chest causing her to fall to the

ground and consequently fracturing her left wrist. Plaintiff sought treatment at Boston Road Medical Center and Bronx Lebanon Hospital for injuries sustained during this incident. **SHAWN MOYNIHAN P.O. OF PSA 7, SHIELD #3202, TAX ID #953147** was the arresting officer in this case. He had an obligation to protect the Plaintiff from illegal acts even from his fellow police officer **MARIELA ORTEGA P.O. OF PSA 7, SHIELD #2975, TAX ID #954198** which he failed to do in violation of his constitutional oath. The handcuffs were placed on Plaintiff's wrists so tight that Plaintiff's wrists turned red and bled.

55. The above action of the Defendant resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:

1. Freedom from assault to her person;
2. Freedom from battery to her person;
3. Freedom from illegal search and seizure;
4. Freedom from false arrest;
5. Freedom from the use of excessive force during the arrest process;
6. Freedom from unlawful imprisonment;

56. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.

57. The direct and proximate result of the individual Defendants acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.
58. That by reason of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION

59. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs 1 through 58 with full force and effect as though set forth at length herein.
60. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
61. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when

an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

62. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
2. Excessive force cannot be used against an individual who does not physically resist arrest.
3. An individual who sustains physical injury at the hands of the police during arrest process should receive prompt medical attention.

63. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

64. That by reason of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction of this action.

AS AND FOR AN THIRTEENTH CAUSE OF ACTION

65. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs 1 through 64 with full force and effect as though set forth at length herein.
66. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court which would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
January 11, 2019

Yours, etc.

SIM & DEPAOLA, LLP

BY:  **PETER SIM, ESQ.**
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

Index No.:

Purchased: _____

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IVELISE SUAREZ AND MARIA VILLALOBO,**Plaintiffs,****-against-****VERIFICATION**

**THE CITY OF NEW YORK, SHAWN MOYNIHAN
P.O. OF PSA 7, SHIELD #3202, TAX ID #953147,
MARIELA ORTEGA P.O. OF PSA 7, SHIELD #2975,
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JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
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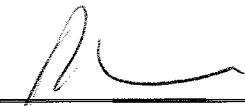
Defendants.

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I, **PETER SIM**, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
January 11, 2019



PETER SIM

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

IVELISE SUAREZ AND MARIA VILLALOBO,

Plaintiffs,

-against-

THE CITY OF NEW YORK, SHAWN MOYNIHAN P.O. OF PSA 7, SHIELD #3202, TAX ID #953147, MARIELA ORTEGA P.O. OF PSA 7, SHIELD #2975, TAX ID #954198, OTHER NEW YORK CITY POLICE OFFICERS ON ARREST #B17663805, N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON DECEMBER 19, 2017 AND NO OTHER,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: PETER SIM, ESQ.
Attorneys for Plaintiff(s)
42-40 Bell Blvd, Ste 500
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for